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Plaintiff, *Pro per pro se*

Dated: August 21, 2025

SUPERIOR COURT OF CALIFORNIA, COUNTY OF BUTTE

Attn: THE HONORABLE CHIEF JUDGE

**CHIEF JUDGE CHAMBERS,
SUPERIOR COURT OF CALIFORNIA, COUNTY OF BUTTE**
1775 Concord Avenue
Chico, CA 95928

**RE: Case No. 25CV02798 - Constitutional Supremacy and Civil Rights Awareness
Mathew Tyler v. State of California, et al.**

Your Honorable Chief Judge:

I write to respectfully bring to the Court's attention potential constitutional and civil rights violations that may be occurring within this judicial district, not to persuade or compel action, but to raise awareness of legal principles that govern our constitutional system and ensure judicial officers have complete information regarding their constitutional duties under Article VI, Clause 2 of the United States Constitution.

Historical Foundation: The American commitment to equal justice traces to the Mayflower Compact (November 11, 1620), wherein the founders pledged to establish "just and equal laws, ordinances, acts, constitutions, and offices" for the general good of the colony. This foundational principle of equal treatment under law became integral to our constitutional framework.

Constitutional Preamble Obligations: The Constitution's Preamble establishes fundamental governmental purposes: "to form a more perfect Union, establish Justice, insure domestic Tranquility, provide for the common defence, promote the general Welfare, and secure the Blessings of Liberty." These obligations require government

officials, including judges, to actively promote peace, tranquility, and justice through equal application of law rather than selective enforcement based on administrative preferences.

I. CONSTITUTIONAL SUPREMACY FRAMEWORK

Article VI, Clause 2 of the United States Constitution establishes that the Constitution is "the supreme Law of the Land" and that "the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding." This constitutional supremacy clause is self-executing and preemptive, requiring no additional legislation or judicial interpretation to be fully operative.

Pursuant to Article VI and 28 U.S.C. § 453, all judges, federal and state, take an oath as a fundamental condition of their tenure to ensure, first, constitutional supremacy superior even to federal statutory law, and second, federal supremacy over state law. As the Supreme Court established in *Cooper v. Aaron*, 358 U.S. 1, 18 (1958), "no state legislator or executive or judicial officer can war against the Constitution without violating his undertaking to support it."

Under the established legal principle articulated in *Norton v. Shelby County*, 118 U.S. 425, 442 (1886), any act—legislative, judicial, or executive—that conflicts with the Constitution is inherently and automatically void ab initio and constitutes an ultra vires act: "An unconstitutional act is not a law; it confers no rights; it imposes no duties; it affords no protection; it creates no office; it is in legal contemplation as inoperative as though it had never been passed."

Congress, the Judiciary, and Executive branch are all subordinate to the Constitution and cannot preside over the Constitution. Any attempt to do so constitutes violations of separation of powers, exceeding authority, and acting without jurisdiction. The judiciary's authority is explicitly designed to maintain a neutral arbitrator to protect the appearance of impartiality, and as part of the judiciary's duty, judges are constitutionally required to uphold and defend the Constitution.

Any reasonable, informed American—aware that judges are bound by both the Constitution's Supremacy Clause (Article VI, Clause 2) and their oaths of office (Article VI, Clause 3; 28 U.S.C. § 453)—would have serious doubts about the integrity or bias of a judge who deliberately ignores those mandates. Such acts are not mere errors—they are ultra vires acts that are legally null, as the Supreme Court explained in *Norton v. Shelby County*, 118 U.S. 425 (1886).

Ignoring constitutional duties doesn't just undermine law—it invites injustice. As demonstrated in the impeachment of Judge G. Thomas Porteous Jr. (H.Res. 1031), such misconduct shows gross disregard for justice and terminates any claim to "good behavior" or lifetime tenure. Alexander Hamilton noted in Federalist No. 78 that the judiciary "has no influence over either the sword or the purse."

Article I, Sections 1 and 8 grant the power "To make all Laws" explicitly to Congress. Judicial attempts to create law from the bench constitute usurpation of legislative power. The judiciary failing to uphold the broad authority of the Constitution or federal law exceeds the Court's authority by attempting to constrain rather than broaden the Constitution as mandated—a violation of the conditions of judicial employment.

Such judicial acts constitute multiple constitutional violations: (1) failing to uphold constitutional supremacy as mandated by the Supremacy Clause and judicial oaths; (2) effectively passing legislation in violation of Article I, Sections 1 and 8; and (3) potentially treason against the Constitution and United States by knowingly providing aid and comfort to enemies through (a) warring against the Constitution, (b) eroding the rule of law, and (c) enabling generational attacks on constitutional governance—all committed in open court.

This constitutes levying war and giving aid and comfort with concrete acts committed in open court, representing betrayal of both citizens and the Constitution itself through oath violations. Such conduct demonstrates either: (1) competent adjudication with knowing criminal intent, (2) corruption, or (3) incompetence warranting tenure removal. Additionally, these acts constitute violations of 18 U.S.C. §§ 241-242, requiring mandatory prosecution pursuant to 42 U.S.C. § 1987, along with honest services fraud, wire fraud, and obstruction of justice.

There is no judicial independence regarding Supremacy Clause compliance. Constitutional supremacy maintenance is an explicit constitutional requirement and condition of judicial employment. Judges who accept their position only to renege on constitutional oaths commit the aforementioned crimes. There is no absolute judicial immunity for treason.

II. CONSTITUTIONAL FIDELITY REQUIREMENTS

Article VI, Clause 2 establishes that constitutional fidelity takes precedence over all other loyalties or institutional preferences. As emphasized in *Cooper v. Aaron*, judicial officers pledge fidelity "to the Constitution first and foremost before and above institutions themselves."

Any judicial fidelity to administrative convenience, institutional tradition, or collegial pressure that supersedes constitutional fidelity violates the supremacy clause and the judicial oath. When judges prioritize institutional interests over constitutional compliance, they exceed their constitutional authority and act without jurisdiction.

III. CURRENT ACCOMMODATION DISPARITIES

The Court currently provides comprehensive accommodations for individuals with language barriers through court-provided interpreters, pursuant to Court Interpreters Act, 28 U.S.C. §§ 1827-1828, and California Evidence Code § 752. These accommodations include real-time interpretation, document translation, and procedural modifications to ensure meaningful access to judicial proceedings.

Similarly, the Court presumably provides comparable accommodations to incarcerated indigent individuals through video conferencing, modified scheduling, specialized transport arrangements, and facilitated process service, recognizing that incarceration cannot constitute a barrier to constitutional court access rights established in *Bounds v. Smith*, 430 U.S. 817 (1977), and *Lewis v. Casey*, 518 U.S. 343 (1996). When an incarcerated indigent person requires process service, the Court presumably facilitates this service through coordination with correctional facilities, U.S. Marshal Service, or alternative service methods to ensure constitutional access to judicial proceedings despite physical constraints.

However, in Case No. 25CV02798, the Court appears to have declined to provide reasonable accommodations under Section 504 of the Rehabilitation Act, 29 U.S.C. § 794, and the Americans with Disabilities Act Title II, 42 U.S.C. § 12132, for a qualified individual with disabilities seeking equal access to judicial services. This creates a potential disparity in accommodation provision based on the type of barrier rather than the constitutional principle of equal access. Specifically, while the Court presumably facilitates process service for incarcerated indigent individuals who cannot physically accomplish service due to confinement, similar process service accommodations appear to have been denied to individuals with disabilities without complying with the statutory way; i.e., undue burden or fundamentally altering goods/services who face comparable practical barriers to court access.

Physical ADA Violations in Butte County Court Facilities: The discrimination extends beyond procedural denials to physical accessibility violations. The Butte County Superior Court, North Butte County Courthouse's clerk windows penalize people with disabilities by requiring them to travel the furthest distance from the entrance strictly and solely based on their disability status. The approval of such discriminatory treatment implicates

building inspectors and code enforcement officials who signed off on these governmental building designs.

Similarly, the Butte County Superior Court (1 Court St, Oroville, CA 95965) fails to provide the closest parking spots for qualified individuals with disabilities, including the parking spots to the left of the entrances (opposite of the designated disabled parking). Disabled parking is mandated to accommodate people with mobility limitations, such as Plaintiff. These design deficiencies, if known and approved by building inspectors and code enforcement from different municipalities, implicate those officials in systematic ADA violations.

This pattern extends to other County facilities, with violations documented at the County Government building (25 County Center Dr, Oroville, CA 95965) where second floor ADA parking at the entrance facing County Center Dr was improperly removed, demonstrating systematic disregard for federal and California disability access requirements across multiple Butte County facilities with the complacency of the judiciary and other government officials, presumably privy to such continuing violations on a daily basis or however often they're there.

IV. SECTION 504 AND ADA REQUIREMENTS

Section 504 provides that "no otherwise qualified individual with a disability in the United States...shall, solely by reason of her or his disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance." 29 U.S.C. § 794(a).

The ADA Title II mandates that "no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity." 42 U.S.C. § 12132.

State Action Framework: Court discrimination constitutes state action under multiple theories. Per 42 U.S.C. § 2000a(d), "Discrimination or segregation by an establishment is supported by State action within the meaning of this subchapter if such discrimination or segregation (1) is carried on under color of any law, statute, ordinance, or regulation; or (2) is carried on under color of any custom or usage required or enforced by officials of the State or political subdivision thereof; or (3) is required by action of the State or political subdivision thereof." Court accommodation denials satisfy all three prongs as actions carried on under color of state judicial authority and state custom.

Constitutional Preemption Under Article VI, Clause 2: Section 504 and the ADA operate as preemptive federal law under Article VI, Clause 2 of the Constitution, which establishes that the Constitution is "the supreme Law of the Land" and that "the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding." Federal law supersedes conflicting state law but yields to Constitutional conflict. As federal civil rights statutes, Section 504 and ADA requirements supersede any conflicting state court rules, procedures, or administrative preferences.

Non-Discretionary Judicial Duties: The Constitution requires that judiciary always uphold and defend constitutional supremacy. As part of their oath under 28 U.S.C. § 453, judges have absolute, non-discretionary conditions of employment: (1) federal law supersedes conflicting state laws, and (2) federal law must yield to the Constitution when conflicts arise. These are not discretionary judicial preferences but mandatory constitutional duties that cannot be waived, modified, or avoided through any Court rules or administrative convenience, all Courts, even the Supreme Court are subordinate to the Constitution which is why fidelity is to the Constitution, not to institutions.

ADA Definition of Discrimination: The ADA specifically codifies discrimination to include "a failure to make reasonable modifications in policies, practices, or procedures, when such modifications are necessary to avoid discrimination on the basis of disability, unless the public entity can demonstrate that making the modifications would fundamentally alter the nature of the service, program, or activity." 28 C.F.R. § 35.130(b) (7).

Congressional Purposes of the ADA: Congress explicitly declared in 42 U.S.C. § 12101(b) that the purposes of the ADA are:

1. to provide a clear and comprehensive national mandate for the elimination of discrimination against individuals with disabilities;
2. to provide clear, strong, consistent, enforceable standards addressing discrimination against individuals with disabilities;
3. to ensure that the Federal Government plays a central role in enforcing the standards established in this chapter on behalf of individuals with disabilities; and
4. to invoke the sweep of congressional authority, including the power to enforce the fourteenth amendment and to regulate commerce, in order to address the major areas of discrimination faced day-to-day by people with disabilities.

Congressional Response to Judicial Restrictions: When the judiciary's void ab initio ultra vires acts (constitutional supremacy violations, failing to uphold the Constitution broadly, acting without authority or jurisdiction) improperly restricted the ADA's scope,

Congress responded with the ADA Amendments Act of 2008 (ADAAAA) to restore and reaffirm their intent for broad protections for qualified individuals with disabilities. Congress specifically stated that the ADA "was intended to provide broad coverage" and that the definition of disability "shall be construed in favor of broad coverage." 42 U.S.C. § 12102(4)(A). This legislative response demonstrates that courts cannot constitutionally narrow disability protections through restrictive interpretations contrary to Congressional intent.

ADA Amendments Act Purpose: "The primary purpose of the ADA Amendments Act is to make it easier for people with disabilities to obtain protection under the ADA. Consistent with the ADA Amendments Act's purpose of reinstating a broad scope of protection under the ADA, the definition of 'disability' in this part shall be construed broadly in favor of expansive coverage to the maximum extent permitted by the terms of the ADA. The primary object of attention in cases brought under the ADA should be whether entities covered under the ADA have complied with their obligations and whether discrimination has occurred, not whether the individual meets the definition of 'disability.' The question of whether an individual meets the definition of 'disability' under this part should not demand extensive analysis." 28 C.F.R. § 35.101(b).

Federal Hate Crime Criteria: Federal hate crimes apply beyond physical violence. While 18 U.S.C. § 249(a)(2) covers acts causing bodily injury "because of actual or perceived disability," 18 U.S.C. § 249(a)(1) criminalizes willful injury, intimidation, or interference with federally protected rights based on protected characteristics. Additionally, systematic accommodation denials constitute "injury" through deprivation of civil rights, "intimidation" through discriminatory treatment, and "interference" with federally protected activities including court access and electoral participation. The statutory term "injury" encompasses dignitary harm, civil rights deprivation, and interference with constitutional rights beyond mere physical harm.

California Hate Crime Criteria: California Penal Code § 422.55 defines hate crimes as criminal acts "committed, in whole or in part, because of one or more of the following actual or perceived characteristics of the victim: disability, gender, nationality, race or ethnicity, religion, sexual orientation, or association with a person or group with one or more of these actual or perceived characteristics." California Penal Code § 422.56(h) defines disability using the same three-prong test as the ADA but applies it more broadly to any bias-motivated criminal conduct.

The reasonable accommodation requirement is not discretionary but mandatory. *Alexander v. Choate*, 469 U.S. 287, 301 (1985) establishes the requirement for "meaningful access" to services. The burden rests entirely on the public entity to

demonstrate that accommodation would constitute an "undue burden" under 42 U.S.C. § 12111(10)(A) or "fundamental alteration" under 28 C.F.R. § 35.130(b)(7)(i). "The term 'undue hardship' means an action requiring significant difficulty or expense, when considered in light of the factors set forth in subparagraph (B)." 42 U.S.C. § 12111(10)(A).

Unlawful Accommodation Denial: In Case No. 25CV02798, the accommodation denial appears to have failed to comply with federal law, as no demonstration of "undue burden" under 42 U.S.C. § 12111(10) or "fundamental alteration" under 28 C.F.R. § 35.130(b)(7)(i) was established by the Court as required. Under federal law, these are the exclusive grounds for lawfully denying reasonable accommodations. Courts cannot invoke "per se unreasonable" standards, as the Tenth Circuit observed in *Barber v. Colorado Dep't of Revenue*, 562 F.3d 1222, 1232-33 (10th Cir. 2009), rejecting the notion that accommodations requiring deviation from state law are "per se not reasonable."

ADA Preemption Authority: The ADA's reasonable modification requirement preempts inconsistent state laws and court rules. As the Seventh Circuit held in *Quinones v. City of Evanston*, 58 F.3d 275, 277 (7th Cir. 1995), "the Supremacy Clause of the Constitution requires a different order of priority. A discriminatory state law is not a defense to liability under federal law; it is a source of liability under federal law." Federal courts have consistently recognized that Title II's reasonable modification requirement "contemplates modification to state laws, thereby permitting preemption of inconsistent state laws, when necessary to effectuate Title II's reasonable modification provision."

Even if such burden or alteration were proved, this does not remove the government's obligation to operate inclusively to meet the individual's needs through alternative means. The Court must still provide "program accessibility" under 28 C.F.R. § 35.150, ensuring that "each service, program, or activity...when viewed in its entirety, is readily accessible to and usable by individuals with disabilities."

This accommodation denial contradicts Congress' explicit will as articulated in the ADA's stated purpose "to provide a clear and comprehensive national mandate for the elimination of discrimination against individuals with disabilities" and the legislative finding that individuals with disabilities have the right to "full inclusion and integration in the economic, political, social, cultural, and educational mainstream of American society," which necessarily includes judicial proceedings. 42 U.S.C. § 12101(b)(1), (a)(3).

Universal Application: "Except as provided in paragraph (b) of this section, this part applies to all services, programs, and activities provided or made available by public entities." 28 C.F.R. § 35.102(a). Federal anti-discrimination requirements apply

universally through multiple statutory frameworks: 42 U.S.C. § 12132; 42 U.S.C. § 12133; 42 U.S.C. § 2000a(a), (d); 42 U.S.C. § 2000a-1; 42 U.S.C. § 2000a-2(a); 42 U.S.C. § 2000d; 28 C.F.R. § 42.503; 28 C.F.R. § 42.108.

Federal courts have established that state court systems constitute "public entities" under ADA Title II and "programs receiving federal financial assistance" under Section 504. *Tennessee v. Lane*, 541 U.S. 509, 533-34 (2004) ("Congress' § 5 power to enforce the Fourteenth Amendment also includes the power to abrogate state sovereign immunity by legislation enacted pursuant to § 5"); *Frame v. City of Arlington*, 657 F.3d 215, 224 (5th Cir. 2011) (court facilities subject to ADA Title II).

V. FEDERAL FUNDING AND ANTI-DISCRIMINATION OBLIGATIONS

California state courts receive substantial federal funding through multiple sources, including Help America Vote Act (HAVA) funding, court improvement grants, and technology modernization funds. This federal funding creates absolute statutory duties under multiple anti-discrimination frameworks:

- **Section 504 Compliance:** All federally-funded programs must provide accessibility, with mandatory anti-discrimination clauses in all federal funding agreements requiring recipients to ensure "no otherwise qualified individual with a disability...shall, solely by reason of her or his disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance." 29 U.S.C. § 794(a)
- **Title VI Compliance:** 42 U.S.C. § 2000d prohibits discrimination in federally funded programs, with mandatory contractual obligations requiring non-discrimination
- **Federal Funding Anti-Discrimination Clauses:** All federal grants contain mandatory anti-discrimination provisions that become contractually binding on recipients, creating enforceable legal obligations beyond statutory requirements
- **California Government Code § 11135:** State anti-discrimination requirements for state-funded programs, which provides that "No person in the State of California shall, on the basis of race, national origin, ethnic group identification, religion, age, sex, sexual orientation, color, genetic information, or disability, be unlawfully denied full and equal access to the benefits of, or be subjected to discrimination under, any program or activity that is conducted, operated, or administered by the state"

- **California Funding Anti-Discrimination Clauses:** California state funding agreements contain mandatory anti-discrimination provisions that contractually bind state agencies, including courts, to provide equal access regardless of disability status

California Disability Rights Framework: California provides enhanced disability protections exceeding federal minimums:

- **Unruh Civil Rights Act (Cal. Civ. Code § 51 et seq.):** Prohibits disability discrimination in public accommodations with broader coverage than federal ADA, providing minimum statutory damages of \$4,000 per violation, automatic attorney fees for successful claims, and punitive damages. Courts constitute public accommodations under California law.
- **Disabled Persons Act (Cal. Civ. Code § 54 et seq.):** Requires equal access to public services for disabled individuals, with courts constituting public services subject to accommodation requirements.
- **California Fair Employment and Housing Act:** Provides superior employment protections and enhanced accommodation requirements beyond federal standards.
- **Civil Rights Remedies (Cal. Civ. Code § 52.1):** Provides comprehensive civil rights damage remedies for constitutional violations, including attorney fees and enhanced recovery mechanisms.

These funding obligations create legally enforceable duties that cannot be waived through any Court rules or administrative convenience, all Courts, even the Supreme Court are subordinate to the Constitution which is why fidelity is to the Constitution, not to institutions. Violation of these funding anti-discrimination clauses subjects the recipient to potential funding termination, damages, and federal oversight under both contractual and statutory enforcement mechanisms.

Process Service Accommodation Framework: Federal law specifically recognizes process service as a reasonable accommodation through 28 U.S.C. § 1915(d), which provides that courts "shall direct the United States marshal to serve all process" for in forma pauperis litigants. This statutory framework demonstrates congressional recognition that process service constitutes a basic court service that must be provided to ensure meaningful access to justice. When courts facilitate process service for incarcerated individuals or provide it through federal marshals for indigent litigants, but deny similar accommodation to disabled individuals, this creates a classification-based disparity that may violate equal protection principles and ADA requirements.

VI. SEPARATION OF POWERS AND JUDICIAL RULE-MAKING

The constitutional separation of powers principle, established in *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579 (1952), prohibits any branch of government from exercising powers constitutionally allocated to another branch. When the judiciary promulgates its own procedural rules, it creates a potential conflict of interest where the judiciary has a vested interest in maintaining the legitimacy of its own rules regardless of their constitutional validity.

Article I, Section 8 of the Constitution grants Congress exclusive legislative power. When Congress permits judicial rule-making through statutes like 28 U.S.C. § 2072 (Rules Enabling Act), this does not eliminate the constitutional constraint that no rule may "abridge, enlarge or modify any substantive right." Any judicial rule that conflicts with constitutional mandates exceeds the limited authority granted and constitutes an ultra vires act.

The judiciary's constitutional role is to serve as a neutral arbitrator between competing interests. When the judiciary becomes invested in defending its own administrative preferences over constitutional compliance, it abdicates this neutral role and acts without constitutional authority.

VII. JUDICIAL IMMUNITY LIMITATIONS

While judicial immunity traditionally protects judges from suit for their official actions, this immunity does not extend to ultra vires acts that exceed constitutional authority. *Mireles v. Waco*, 502 U.S. 9, 12 (1991) establishes that immunity is limited to actions "taken in the judge's judicial capacity" and that "a judge is not immune from liability for nonjudicial actions."

Judicial Immunity Limitations: The Supreme Court has established that judicial immunity does not apply when judges act in an administrative, legislative, or executive capacity. *Forrester v. White*, 484 U.S. 219, 227-28 (1988) (finding no immunity for employment decisions made by a judge); *Supreme Court of Virginia v. Consumers Union of U.S., Inc.*, 446 U.S. 719, 731 (1980) (finding no immunity for rule-making activities). Additionally, judicial immunity does not bar injunctive relief. *Pulliam v. Allen*, 466 U.S. 522 (1984).

Constitutional Injury from Delay: The Ninth Circuit has consistently recognized that "justice delayed is justice denied," especially in cases involving fundamental rights. *Hayden v. Pataki*, 449 F.3d 305, 367 (2d Cir. 2006) (recognizing that delay in adjudicating rights claims can constitute a separate constitutional violation). The Supreme Court has established that "discrimination itself...constitutes an actual injury." *Bazemore*

v. Friday, 478 U.S. 385, 394 (1986). "The loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury." *Elrod v. Burns*, 427 U.S. 347, 373 (1976).

Ex Parte Young Immunity Stripping: When state officials act in violation of the Constitution, they are stripped of their official character and cannot claim sovereign immunity protection. *Ex parte Young*, 209 U.S. 123 (1908). *Whole Woman's Health v. Jackson*, 595 U.S. ____ (2021), reaffirmed that officials with "some connection with the enforcement of the act" lose immunity protection when enforcing unconstitutional laws.

More fundamentally, under Article VI, Clause 2 constitutional supremacy, when constitutional compliance is at stake, judges have no discretion in the manner of proceeding. As the Court noted in *In re Murchison*, 349 U.S. 133, 136 (1955), "justice must satisfy the appearance of justice." Absolute immunity cannot be permitted to shield constitutional violations, as this would elevate judicial immunity above constitutional supremacy in direct contradiction of Article VI, Clause 2.

State Immunity Waiver: "A State shall not be immune under the eleventh amendment to the Constitution of the United States...in Federal or State court...violation of this chapter. In any action against a State for a violation of the requirements of this chapter, remedies (including remedies both at law and in equity) are available for such a violation to the same extent as such remedies are available for such a violation in an action against any public or private entity other than a State." 42 U.S.C. § 12202.

VIII. POTENTIAL CRIMINAL LIABILITY

The systematic denial of reasonable accommodations under color of law may constitute violations of federal criminal civil rights statutes:

18 U.S.C. § 241 (Conspiracy Against Rights): "If two or more persons conspire to injure, oppress, threaten, or intimidate any person...in the free exercise or enjoyment of any right or privilege secured to him by the Constitution or laws of the United States..."

18 U.S.C. § 242 (Deprivation of Rights Under Color of Law): "Whoever, under color of any law...willfully subjects any person...to the deprivation of any rights, privileges, or immunities secured or protected by the Constitution or laws of the United States..."

18 U.S.C. § 245(b)(1)(A), (B), (E) (Federally Protected Activities): This statute criminalizes interference with federally protected activities, including: (A) qualifying or campaigning as a candidate for elective office - Plaintiff is a Presidential candidate for 2016-2084, with the current actions specifically targeting the 2024 election; (B) participating in or enjoying benefits of federally funded programs; and (E) enjoying

public accommodations. Courts receiving federal funding constitute federally funded programs under subsection (B), and denial of disability accommodations interferes with participation in these programs. Additionally, participating in the November general election as a candidate constitutes federally protected activity under subsection (A), making interference with ballot access through accommodation denial a federal crime.

18 U.S.C. § 371 (Conspiracy): When multiple officials coordinate to deny accommodations systematically, this constitutes conspiracy "to commit any offense against the United States or to defraud the United States" of lawful administration of federal civil rights laws.

Judicial Oath Violations: Willful failure to uphold constitutional supremacy and federal law violates the judicial oath under 28 U.S.C. § 453, potentially constituting honest services fraud under 18 U.S.C. § 1346.

When accommodation denials demonstrate bias motivation based on disability status, they may also violate federal hate crime laws under 18 U.S.C. § 249(a)(2) and the Matthew Shepard and James Byrd, Jr. Hate Crimes Prevention Act.

42 U.S.C. § 1987 creates a mandatory duty for district attorneys: "It shall be the duty of the district attorneys of the several districts and the United States attorneys of the several districts to institute proceedings against all persons violating any of the provisions of sections 1981, 1982, 1983, 1985, and 1986 of this title, and to cause such proceedings to be prosecuted to their termination."

Attorney General Authority: "Any person or group of persons is engaged in a pattern or practice of discrimination under this subchapter; or any person or group of persons has been discriminated against under this subchapter and such discrimination raises an issue of general public importance, the Attorney General may commence a civil action in any appropriate United States district court." 42 U.S.C. § 12188(b)(1)(B).

IX. CALIFORNIA STATE LAW VIOLATIONS

California Government Code §§ 11135-11139 establish comprehensive anti-discrimination requirements for state-funded programs, including courts. Section 11135 provides: "No person in the State of California shall, on the basis of race, national origin, ethnic group identification, religion, age, sex, sexual orientation, color, genetic information, or disability, be unlawfully denied full and equal access to the benefits of, or be unlawfully subjected to discrimination under, any program or activity that is conducted, operated, or administered by the state or by any state agency."

Additionally, California Government Code § 14613.7 requires mandatory reporting of crimes occurring on state property: "Any employee of a state agency...who observes the commission of a crime on property owned or operated by the state...shall immediately report such crime to the appropriate law enforcement agency."

Mandatory Crime Reporting Violations: California Government Code § 14613.7 creates a non-discretionary duty for state agencies to report crimes occurring on state property or involving state resources to appropriate law enforcement authorities. Title 13, Cal. Code of Regs., Div. 2, Ch. 12, § 1875 establishes specific procedures, timelines, and enforcement mechanisms for crime reporting. Defendants had actual knowledge of criminal civil rights violations, hate crimes, and discriminatory conduct occurring on state property using state resources, but systematically failed to report these crimes as required by law.

People v. Nguyen, 155 Cal.App.4th 1154, 1161-62 (2007), establishes that mandatory reporting procedures are "designed to protect both the public interest and the rights of the accused" and require strict compliance. Defendants' pattern of non-reporting demonstrates consciousness of guilt and constitutes obstruction of justice.

42 U.S.C. § 1986 Liability: Federal law creates liability for those who, having knowledge of civil rights violations and power to prevent them, neglect or refuse to do so. *Griffin v. Breckenridge*, 403 U.S. 88, 97 (1971) broadly construed federal civil rights statutes. *United States v. Price*, 383 U.S. 787, 794 (1966) established private party liability under civil rights laws. "A discriminatory state law is not a defense to liability under federal law; it is a source of liability under federal law." *Williams v. General Foods Corp.*, 492 F.2d 399, 404 (7th Cir. 1974).

X. HEIGHTENED STANDARDS FOR PRO SE AND INDIGENT LITIGANTS

Public Funding and Equal Access: Courts are funded through the public purse to serve all citizens equally, not merely those with means to hire professional counsel. The judicial oath under 28 U.S.C. § 453 specifically requires judges to "do equal right to the poor and to the rich," establishing that economic status cannot determine access to justice. *Boddie v. Connecticut*, 401 U.S. 371, 374 (1971) held that "given the basic importance of the civil marriage relationship in this society's hierarchy of values and the concomitant state monopolization of the means for legally dissolving this relationship, due process does prohibit a State from denying, solely because of inability to pay, access to its courts."

The Supreme Court emphasized in *Gideon v. Wainwright*, 372 U.S. 335, 344 (1963) that "reason and reflection require us to recognize that in our adversary system of criminal justice, any person haled into court, who is too poor to hire a lawyer, cannot be assured a

fair trial unless counsel is provided for him." This principle extends to civil proceedings involving constitutional rights.

In Forma Pauperis Framework: Federal law recognizes through 28 U.S.C. § 1915 that indigent status cannot bar court access, requiring courts to provide process service and other accommodations. This statutory framework demonstrates that public court systems must adapt their procedures to ensure meaningful access regardless of economic means or disability status.

Federal law requires heightened protection for pro se and indigent litigants. *Haines v. Kerner*, 404 U.S. 519, 520-21 (1972) mandates that pro se complaints be "held to less stringent standards than formal pleadings drafted by lawyers." *Erickson v. Pardus*, 551 U.S. 89, 94 (2007) requires that "pro se pleadings must be liberally construed."

The Ninth Circuit has specifically emphasized this duty: "The court has a duty to ensure that pro se litigants do not lose their right to a hearing on the merits of their claim due to ignorance of technical procedural requirements." *McElyea v. Babbitt*, 833 F.2d 196, 197 (9th Cir. 1987). *Johnson v. Reagan*, 524 F.2d 1123, 1124 (9th Cir. 1975) requires that motions of self-represented, in forma pauperis plaintiffs "should be viewed with special solicitude."

Public Interest in Constitutional Enforcement: The Ninth Circuit has definitively held that "it is always in the public interest to prevent the violation of a party's constitutional rights." *Melendres v. Arpaio*, 695 F.3d 990, 1002 (9th Cir. 2012). Courts must recognize that "administrative convenience" cannot justify practices that burden fundamental rights. *Frontiero v. Richardson*, 411 U.S. 677, 690 (1973).

Procedural Due Process Rights: The Supreme Court has recognized that "the right to procedural due process is 'absolute'" and that its violation is actionable "even without proof of actual injury." *Carey v. Piphus*, 435 U.S. 247, 266 (1978).

Recent precedent in *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29, 2025) reaffirmed: "The Court must also construe the alleged facts in the light most favorable to the plaintiff...All ambiguities or doubts must also be resolved in the plaintiff's favor."

XI. UNCONSTITUTIONAL JUDICIAL DOCTRINES

Several judicial doctrines purport to limit constitutional enforcement but lack constitutional authorization and effectively supersede constitutional supremacy:

Absolute Judicial Immunity: While having some basis in common law, absolute immunity for ultra vires constitutional violations contradicts Article VI, Clause 2 supremacy requirements.

Political Question Doctrine: This doctrine, as applied to constitutional violations, improperly allows judicial abdication of constitutional enforcement duties mandated by Article VI, Clause 2.

Standing Limitations for Constitutional Rights: Artificial standing restrictions for constitutional violations conflict with the self-executing nature of constitutional supremacy.

These doctrines, like the Eleventh Amendment's state sovereign immunity provisions, effectively purport to supersede constitutional enforcement in direct violation of Article VI, Clause 2. Under *Norton v. Shelby County*, constitutional supremacy cannot be subordinated to any other legal principle or doctrine.

XII. CRIME VICTIM RIGHTS

Mr. Tyler qualifies as a crime victim under 18 U.S.C. § 3771 and California Constitution Article I, § 28(e) due to systematic civil rights violations. The Crime Victims' Rights Act provides mandatory protections that courts "have no discretion to decline to give effect to." *Kenna v. United States District Court*, 435 F.3d 1011, 1017 (9th Cir. 2006).

California Constitution Article I, § 28(e) defines victims to include those subjected to civil rights violations and provides: "In order to preserve and protect a victim's rights...a victim shall be entitled to the following rights: To be treated with fairness and respect for his or her dignity and privacy throughout the criminal justice process."

XIII. CURRENT LITIGATION CONTEXT AND STATE FISCAL IMPACT

The actions described herein constitute the very subject matter of Plaintiff's lawsuit against other California officials who have committed identical violations. The Court's inaction will inevitably cost the State additional monies by requiring adjudication of federal and California funding discrimination violations. The Court's refusal to approve Plaintiff's Constitutional emergency ex parte TRO creates procedural delays requiring coordination with Court staff and Sheriff's department for process service, generating unnecessary administrative costs and prolonging constitutional violations.

This entire lawsuit, and the associated costs to California taxpayers, could have been avoided if the State of California and its officials had simply complied with the letter of

the law and well-established stare decisis regarding constitutional supremacy, ADA accommodations, and federal civil rights requirements.

XIV. CONCLUSION AND CONSTITUTIONAL AWARENESS

This communication serves solely to ensure the Court has complete information regarding the constitutional framework governing judicial duties and potential civil rights implications of accommodation denials. No response is required or expected, as constitutional supremacy operates automatically under Article VI, Clause 2.

The constitutional separation of powers exists precisely to ensure the judiciary remains a neutral arbitrator rather than an interested party defending its own administrative preferences. When courts fail to maintain Article VI, Clause 2 constitutional supremacy and instead prioritize institutional loyalties over constitutional fidelity, they abdicate their constitutional duties and act without authority.

Constitutional compliance is not discretionary but mandatory for all government officials. As Justice Jackson noted in *Youngstown*, "emergency powers are consistent with free government only when their control is lodged elsewhere than in the Executive who exercises them."

The same principle applies to judicial emergency: constitutional emergencies require immediate constitutional compliance, not institutional protection or administrative delay.

Respectfully submitted for constitutional awareness purposes,

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Plaintiff, Pro per pro se

Qualified Individual with Disabilities

Crime Victim under Federal and State Law



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SOURCES AND AUTHORITIES CITED

Constitutional Sources:

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- U.S. Constitution, Article VI, Clause 2 (Supremacy Clause)
- U.S. Constitution, Article VI, Clause 3 (Oath Requirement)
- U.S. Constitution, Article II, Section 1 (Presidential Authority)
- U.S. Constitution, Twelfth Amendment (Electoral Process)
- U.S. Constitution, Twenty-Third Amendment (Electoral Process)
- California Constitution, Article I, § 28(e) (Crime Victims' Rights)

Federal Statutes:

- 28 U.S.C. § 453 (Judicial Oath)
- 28 U.S.C. § 1915(d) (Process Service for In Forma Pauperis Litigants)
- 29 U.S.C. § 794 (Section 504, Rehabilitation Act)
- 42 U.S.C. § 12101 (ADA Findings and Purposes)
- 42 U.S.C. § 12111(10) (Undue Hardship Definition)
- 42 U.S.C. § 12132 (ADA Title II)
- 42 U.S.C. § 12202 (State Immunity Waiver)
- 18 U.S.C. §§ 241-242 (Civil Rights Crimes)
- 18 U.S.C. § 245 (Federally Protected Activities)
- 18 U.S.C. § 249 (Federal Hate Crime Act)
- 18 U.S.C. § 371 (Conspiracy)
- 18 U.S.C. § 3771 (Crime Victims' Rights Act)
- 42 U.S.C. § 1987 (Mandatory Civil Rights Prosecution)
- 42 U.S.C. § 2000a(d) (State Action Definition)
- 42 U.S.C. § 2000d (Title VI Anti-Discrimination)
- 34 U.S.C. § 20141(e)(2) (Crime Victim Definition)
- 3 U.S.C. §§ 1-21 (Electoral College Process)

Federal Regulations:

- 28 C.F.R. § 35.101(b) (ADA Broad Construction)
- 28 C.F.R. § 35.102(a) (Universal Application)
- 28 C.F.R. § 35.130(b)(7) (ADA Discrimination Definition)
- 28 C.F.R. § 35.150 (Program Accessibility Requirements)
- 28 C.F.R. § 35.164 (Reasonable Modification Standards)

California Statutes:

- California Civil Code § 51 et seq. (Unruh Civil Rights Act)
- California Civil Code § 52.1 (Civil Rights Remedies)
- California Civil Code § 54 et seq. (Disabled Persons Act)
- California Government Code §§ 11135-11139 (Anti-Discrimination)
- California Government Code § 14613.7 (Mandatory Crime Reporting)
- California Evidence Code § 752 (Court Interpreters)
- California Fair Employment and Housing Act
- California Penal Code §§ 422.55, 422.56 (Hate Crimes)
- Title 13, Cal. Code of Regs., Div. 2, Ch. 12, § 1875 (Crime Reporting)

Congressional Actions:

- H.Res. 1031 (Impeachment of Judge G. Thomas Porteous Jr.)

Founding Documents:

- Mayflower Compact (November 11, 1620)
- Federalist No. 78 (Alexander Hamilton)

Supreme Court Precedent:

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- Cooper v. Aaron, 358 U.S. 1 (1958)
- Marbury v. Madison, 5 U.S. 137 (1803)
- In re Murchison, 349 U.S. 133 (1955)
- Haines v. Kerner, 404 U.S. 519 (1972)
- Erickson v. Pardus, 551 U.S. 89 (2007)
- Tennessee v. Lane, 541 U.S. 509 (2004)
- Alexander v. Choate, 469 U.S. 287 (1985)
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- Mireles v. Waco, 502 U.S. 9 (1991)
- Bounds v. Smith, 430 U.S. 817 (1977)
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- Gideon v. Wainwright, 372 U.S. 335 (1963)
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- Whole Woman's Health v. Jackson, 595 U.S. ____ (2021)
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